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Data Sharing Agreement

Data Usage Agreement (DUA) for Data Protection Independent Controllers

Document owner	Data Protection Officer's Team
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Guidance Notes:

Independent Controllers (also known as Controllers in common) can share personal data with each other under the UK General Data Protection Regulation (UK GDPR) without a written agreement. However, for the purpose of transparency and to monitor and audit compliance with our legal obligations under the Data Protection Legislation, the MOD require these agreements to be in writing setting out:

i. Purpose, benefit, and nature of the data sharing agreement between the Parties.

ii. The Parties' lawful basis for the processing of the personal data. This requires the Parties to identify the legal grounds (as set out what under Article 6 of the UK GDPR and/or other applicable UK law (this includes common law)) that confer the legal powers or duties that requires and justifies the need to process the personal data in the manner proposed by the Parties.

iii. The types and categories of Personal Data to be shared.

iv. A brief description of the processing activities between the Parties.

v. The transfer Mechanisms agreed between the Parties to be used to securely transfer the personal data.

vi. Protective Measures to be adopted by the Parties such as access and storage controls once the data has been transferred.

vii. Whether the Data Protection Impact Assessment (DPIA) process has been followed. The Parties will need to confirm whether a full DPIA or pre-screening has been completed and signed off. Even if it is decided that a full DPIA is not required in line with current policy, the pre-screening risk assessment must be documented with clear audit trail of the review and authorisation of the risks and mitigations. Its completion must be recorded in the DUA.

viii. The agreed data retention schedules.

ix. How Freedom of Information Requests and/or Data Subject Requests will be managed and whether the Parties will notify the other Party before finalising any public response.

x. The termination or escalation procedure for any disputes.

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ANNEX A –DATA USAGE AGREEMENT

DATA USAGE AGREEMENT (DUA)

-Between-

THE MINISTRY OF DEFENCE (MOD)

AND

LONDON BOROUGH OF CAMDEN

Collectively referred to as Parties and individually referred to as a Party.

Ref Number: 2024-10-24-DARR_DSA_LONDON BOROUGH OF CAMDEN

Version: 1

Dated:

1. This is a Data Usage Agreement (DUA) between the MOD and London Borough fof Camden for the processing of Personal Data for the resettlement of eligible persons (EPs) from Afghanistan to the United Kingdom as a result of the fall of Kabul in 2021;

2. The purpose of this DUA is to set out the terms of control of personal data of EPs who are due to be accommodated at MOD reception sites (RSOM) and/or Transitional Service Family Accommodation (TSFA); or have transitioned through the MOD reception sites (RSOM) and/or Transitional Service Family Accommodation (TSFA) prior to settling in longer-term accommodation. This will include a form summarising the services received during their stay at the sites.

3. For the purposes of this DUA, the Parties are acting as Independent Controllers and will process the personal data shared in compliance with all applicable data protection laws.

Description	Details

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Formalities	This data sharing activity will run from November 2024 and will be reviewed annually until the Parties terminate this DUA once EPs are relocated
Risk Assessment	Data Protection Impact Assessments that cover the Processing of Personal Data for the processing activity have been completed: By MOD in June 2024 By London Borough of Camden in September 2024
Processing Activity	Sharing of personal data related to EPs undergoing resettlement to the UK who are to be accommodated at MOD reception sites (RSOM) and/or Transitional Service Family Accommodation (TSFA); or transitioned through the MOD reception sites (RSOM) and/or Transitional Service Family Accommodation (TSFA) prior to settling in longer-term accommodation. For those transitioned through to a final location, this will include sharing a form summarising the services received during their stay at the TSFA/RSOM sites for LAs.
Legal Gateway	**Legal Gateway for MoD** As a Crown body, the MOD relies on its prerogative powers that emanate from Common Law. **Legal Gateway for London Borough of Camden** Care Act 2014, the Children Acts, Housing Acts, Homelessness Reduction Act 2017, Localism Act 2011, Equality Act 2010, Health and Safety at Work etc Act 1974
Lawful Basis for Processing	**MOD Lawful Basis for processing Personal Data under Article 6 (1)(e)** *"processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller".* It is in the public interest to ensure that EPs are granted with resettlement and supported with their initial orientation package to ensure a positive start to their integration in the UK The lawful bases under the Data Protection legislation that MOD relies on are:

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	Article 6(1)(c) UK General Data Protection Regulation (GDPR): "processing is necessary for compliance with a legal obligation to which controller is subject." **Article 6(1)(e) UK GDPR:** "processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller". It is in the public interest to ensure that eligible individuals are resettled and given the relevant medical and healthcare required. **Article 9(2)(g) of UK GDPR**: Special categories of personal data, such as health data or data that reveals their ethnic origin, will be processed as part of this data sharing arrangement. The lawful basis for processing is Article 9(2)(g) of UK GDPR: "processing is necessary for reasons of substantial public interest, on the basis of domestic law." **London Borough of Camden Lawful Basis for processing Personal Data** Article 6(1)(c): Legal obligation: the processing is necessary for the Controller to comply with the law Article 6(1)(e): Public task: the processing is necessary for the Controller to perform a task in the public interest or for official functions, and the task or function has a clear basis in law. **London Borough of Camden Lawful Basis for processing Special Category Personal Data** Article 9 (2) (b): Employment, social security and social protection (if authorised by law) with the Data Protection Act 2018 Schedule 1 Part 1 condition being paras 1 and 2 Article 9(2)(g): Reasons of substantial public interest (with a basis in law) with the DPA 2018 Schedule 1 Part 2 condition being para 6 Article 9(2) (h) Health or social care (with a basis in law) with the Data Protection Act 2018 Schedule 1 Part 1 condition being paras 1 and 2 **No criminal offence data is being processed.** The London Borough of Camden is not undertaking Law Enforcement Processing under DPA Part 3 for this data.

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Duration of the processing	Commencement date for this sharing activity is October 2024 and this is a regular/ ongoing processing activity to match for the purposes of EPs' resettlement to the UK. The requirements and the type of data processing will be reviewed on an annual basis until the EPs are resettled to the UK.
Nature and purposes of the processing	The MOD will share personal data to the Local Authority to facilitate at pace the relocation of EPs into the UK. The MOD will provide EPs with temporary accommodation at MOD reception sits RSOM sites, for c. 6 weeks. Following this a settled property is identified for each family unit within a Local Authority. Sharing of personal data of EPs who are due to be accommodated at MOD reception sites (RSOM) and/or Transitional Service Family Accommodation (TSFA); or have transitioned through the MOD reception sites (RSOM) and/or Transitional Service Family Accommodation (TSFA) prior to settling in longer-term accommodation. EPs matched to settled accommodation in a different Local Authority to their transitional accommodation, will have a summary of the services received during their stay at transitional accommodation that will be shared with the relevant Local Authority. The Local Authority will use this data to facilitate any required support for eligible persons and families housed in both transitional accommodation and settling into longer term accommodation in their Local Authority area.
Type of Personal Data (including identifying any special category data or data	Details of personal data categories shared by MOD DARR to London Borough of Camden are: ARAP number First name Middle Name(s)

relating to criminal convictions and offences)	Surname Date of Birth Sex Contact email Contact mobile **Special categories of personal data:** Mobility, access requirements SEND requirements Physical and mental Health and special needs information, including pregnancy Safeguarding information **Other personal information shared when sharing of TSFA/RSOM Form:** Lead caseworker name at site English language assessment - if known Skills/Qualifications - if known Offer of employment (Adults only) including locations - If known Details of family currently registered in primary/secondary education or higher education i.e. college or university – if known Children U16 not registered in education registered on as Children Missing in Education by the Local Authority- if applicable Family members enrolled on ESOL courses - if known Current LA location details Future LA location details
Categories of Data Subject	EPs and their families.

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Transfer Mechanism	This information will be shared by MOD to the Local Authority via the MOD IT system in end-to-end encrypted emails to individually named mailboxes; marked as OFFICIAL-SENSITIVE-PERSONAL information as per MOD policy and UK GDPR. The mechanism to be used is in accordance with the principles set out in HM Government Security Policy Framework
Data Access and Storage	**MOD**: Storage of the data will be on the accredited MOD O365 SharePoint system within a limited access library marked OFFICIAL-SENSITIVE-PERSONAL set only to the staff who require access, have relevant security clearance, training and managed in line with MOD policy. **London Borough of Camden:** Upon receipt of the data for a referral, the data will be stored on Camden Council's SharePoint/Teams system within a limited access library marked OFFICIAL-SENSITIVE-PERSONAL set only to the staff who require access, have relevant, training and managed in line with Camden Council policy. Should a household be resettled in Camden, some personal data will be stored on secure databases used for Housing management functions. Access to the database is limited only to the staff who require access, have relevant training, and managed in line with Camden Council policy. The Parties agree to the following: All personnel will move, process data securely and in line with the principles set out in HM Government Security Policy Framework when handling, transferring, storing, accessing or destroying information. Ensure an appropriate level of technical and organisational security for the personal data, including restricting access to the database to approved staff only. Report any data losses, wrongful disclosures or breaches of security relating to the shared information to the other Party. Mark information assets with the appropriate security classification and apply the appropriate baseline set of personnel, physical and

	information security controls that offer an appropriate level of protection against a typical threat profile. All personnel who have access to the personal data shared under this DUA have completed relevant data protection training and that they will only access personal data on a need-to-know basis.
Plan for return and destruction of the personal data once the processing is complete.	MOD will only retain personal data for as long as necessary to fulfil the purposes set out in this DUA of resettling EPs and families to the UK, in line with UKGDPR and DPA2018. After the retention period, has elapsed all data will be destroyed securely in line with MOD data destruction policy. London Borough of Camden will only retain the data for as long as necessary and in line with the Council's retention policy, which has defined retention periods that vary depending on the type of data and the system in which it is kept and the purpose of the processing. At the end of the retention period data is securely deleted.
Transfers to third parties (including countries or international organisations)	**MOD** – not aplicable **London Borough of Camden** - the Council has a number of data processors such as the ones who provide systems upon which data will be stored, such as MOSAIC for adults and children's safeguarding information. However, all processors store (and otherwise process) data either in the UK or within the EU. There would be no transfers to non-EEA countries.

4. LEGAL STATUS OF THIS DUA

4.1 This DUA may only be varied by written agreement of the Parties.

4.2 This DUA is not intended to be legally binding, and no legal obligations or legal rights shall arise between the Parties from this DUA. The agreement between the Parties have been documented to ensure transparency for the personal data processing between the Parties.

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4.3 Nothing in this DUA is intended to, or shall be deemed to, establish any partnership or joint venture between the Parties, constitute either Party as the agent of the other Party, nor authorise either of the Parties to make or enter into any commitments for or on behalf of the other Party.

4.4 The Parties may incorporate this DUA into other agreements by reference to cover off their requirements under the Data Protection legislation.

5. GOVERNING LAW AND JURISDICTION

5.1 This DUA shall be governed by and construed in accordance with English law.

Signed by:

[redacted]

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On Behalf of London Borough of Camden

Dated:…… 6th November 2024…….

… …[redacted]……..

[redacted] Dep Director DARR

Resettlement, Ministry of Defence

Dated:……17 Oct 24……

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of Defence

Annex B- Definitions

Data Protection Legislation: (i) the UK GDPR, the LED and any applicable national implementing Laws as amended from time to time (ii) the DPA 2018 to the extent that it relates to processing of personal data and privacy; (iii) all applicable Law about the processing of personal data and privacy.

Data Protection Impact Assessment: an assessment by the Controller of the impact of the envisaged processing on the protection of Personal Data.

Controller, Processor, Processing, Data Subject, Personal Data, Personal Data Breach, Data Protection Officer take the meaning given in the UK GDPR or, in respect of processing of personal data for a law enforcement purpose to which Part 3 of the Data Protection Act applies, the meaning in that Part if different.

Personal Data Breach: a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, personal data transmitted, stored, or otherwise processed.

Data Subject Request: a request made by, or on behalf of, a Subject in accordance with rights granted pursuant to the Data Protection Legislation in respect of their Personal Data.

DPA 2018: Data Protection Act 2018

UK GDPR: the General Data Protection Regulation (Regulation (EU) 2016/679) as retained in UK law by the EU (Withdrawal) Act 2018

FOIA: Freedom of Information Act 2000

Freedom of Information Requests: any request for information made under the Freedom of Information Act 2000

Law: means any law, subordinate legislation within the meaning of Section 21(1) of the Interpretation Act 1978, bye-law, enforceable right within the meaning of Section 2 of the European Communities Act 1972, regulation, order, regulatory policy, mandatory guidance or

code of practice, judgment of a relevant court of law, or directives or requirements with which the Processor is bound to comply;

LED: Law Enforcement Directive (Directive (EU) 2016/680)

PECR: the Privacy and Electronic Communications Directive 2002/58/EC (as updated by Directive 2009/136/EC) and the Privacy and Electronic Communications Regulations 2003 (SI 2003/2426) as amended.

Protective Measures: appropriate technical and organisational measures which may include: pseudonymising and encrypting Personal Data, ensuring confidentiality, integrity, availability and resilience of systems and services, ensuring that availability of and access to Personal Data can be restored in a timely manner after an incident, and regularly assessing and evaluating the effectiveness of the such measures adopted by it.